



Legal Document

Superior Court of California, County of Alameda
Case No. RG21090128
Escudero v. Tesla, Inc.

Document 9



View Document



View Docket



24069421

BOWMAN AND BROOKE LLP
Vincent Galvin
Lauren O. Miller
1741 Technology Drive
Suite 200
San Jose, CA 95110
Tel: +1.408.279.5393
Fax: +1.408.279.5845
vincent.galvin@bowmanandbrooke.com
lauren.miller@bowmanandbrooke.com

MORGAN, LEWIS & BOCKIUS LLP
Robert A. Brundage, Bar No. 159890
One Market
Spear Street Tower
San Francisco, CA 94105-1596
Tel: +1.415.442.1000
Fax: +1.415.442.1001
robert.brundage@morganlewis.com

Attorneys for Defendant
TESLA, INC.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF ALAMEDA

BENJAMIN MALDONADO ESCUDERO and
ADRIANA GARCIA MALDONADO,

Plaintiffs,

vs.

TESLA, INC.; ROMEO LAGMAN YALUNG;
VILMA YALUNG; and DOES 1 through 100,
INCLUSIVE,

Defendants.

Case No. RG21090128

ASSIGNED FOR ALL PURPOSES TO
JUDGE NOËL WISE
DEPARTMENT 24

UNLIMITED JURISDICTION

**NOTICE OF DEMURRER OF
DEFENDANT TESLA, INC. TO
COMPLAINT OF BENJAMIN
MALDONADO ESCUDERO AND
ADRIANA GARCIA MALDONADO;
DEMURRER; MEMORANDUM OF
POINTS AND AUTHORITIES**

Reservation No: R-2257641

Date: June 17, 2021

Time: 9:00 a.m.

Dept: 24

Judge: Hon. Noël Wise

Trial Date: None

Date Action Filed: Feb. 26, 2021

FILED
ALAMEDA COUNTY
APR 30 2021
CLERK OF THE SUPERIOR COURT
By *Darrin Oliver*
D. OLIVER, Deputy

BY FAX

1
2
3
4
5
6
7
8
9
10
11
12
13
14
15
16
17
18
19
20
21
22
23
24
25
26
27
28

NOTICE OF DEMURRER OF DEFENDANT TESLA, INC.

TO EACH PARTY AND TO THE COUNSEL OF RECORD FOR EACH PARTY:

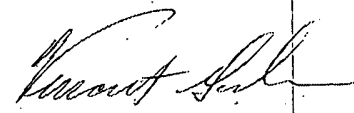
YOU ARE HEREBY NOTIFIED THAT on June 17, 2021, at 9:00 a.m. or as soon thereafter as the matter may be heard in Department 24 of this Court, located at Administration Building, 1221 Oak Street, Oakland, California 94612, the demurrer of defendant Tesla, Inc., to the Complaint of plaintiffs Benjamin Maldonado Escudero and Adriana Garcia Maldonado, served and filed with this Notice, will be heard.

The demurrer is based on the memorandum in support, the files and records in this action, and any further evidence and argument that court may receive at or before the hearing.

Dated: April 30, 2021

BOWMAN AND BROOKE LLP

By



Vincent Galvin
Attorneys for Defendant
TESLA, INC.

1
2
3
4
5
6
7
8
9
10
11
12
13
14
15
16
17
18
19
20
21
22
23
24
25
26
27
28

DEMURRER

TO EACH PARTY AND TO THE COUNSEL OF RECORD FOR EACH PARTY:

Defendant Tesla, Inc. ("Tesla") demurs generally to the third and fourth causes of action of the complaint, and specially to the fourth cause of action, on the following grounds:

Demurrer to the Third Cause of Action.

1. The Third Cause of Action fails to state facts sufficient to constitute a cause of action. This cause of action claims that Tesla was negligent or reckless in owning, operating, using, driving, maintaining, loaning or entrusting the subject vehicle. But the complaint does not allege facts showing that Tesla owned, operated, used, drove, maintained loaned or entrusted the vehicle.

Demurrer to the Fourth Cause of Action.

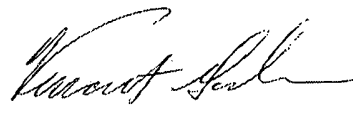
1. The Fourth Cause of Action fails to state facts sufficient to constitute a cause of action. This cause of action claims that Tesla was negligent in driving or using the vehicle and violated Vehicle Code section 22350, which only applies to a person who is driving the vehicle. The complaint does not allege facts showing that Tesla was driving or using the vehicle.

2. The Fourth Cause of Action is uncertain because it alleges that Tesla "otherwise" violated duties without identifying what the duties are or how Tesla allegedly violated them, and because it alleges that Tesla violated "multiple sections" of the Vehicle Code without identifying sections other than section 22350 or how Tesla allegedly violated them.

Dated: April 30, 2021

BOWMAN AND BROOKE LLP

By



Vincent Galvin
Attorneys for Defendant
Tesla, Inc.

TABLE OF CONTENTS

	Page
I. INTRODUCTION	1
II. FACTS	2
A. The Accident	2
B. Allegations About Tesla (The Company) And The Model 3 (The Product)	3
C. The Causes Of Action At Issue On This Demurrer.	5
III. ARGUMENT	6
A. The Third Cause Of Action Does Not State Facts Sufficient To Constitute A Cause Of Action Against Tesla.	7
B. The Fourth Cause of Action Does Not State Facts Sufficient To Constitute A Cause of Action Against Tesla, And Is Also Uncertain.....	9
1. The Fourth Cause of Action Does Not State Facts Sufficient To Constitute A Cause of Action Against Tesla.	10
2. The Fourth Cause of Action Is Uncertain.	10
C. Sustaining The Demurrer Will Not Leave Plaintiffs Without A Claim.....	11
IV. CONCLUSION	12

TABLE OF AUTHORITIES

Page(s)

CASES

<i>A.J. Fistes Corp. v. GDL Best Contractors, Inc.</i> (2019) 38 Cal.App.5th 677	10
<i>Adler v. Department of Motor Vehicles</i> (1991) 228 Cal.App.3d 252	7
<i>Aubry v. Tri-City Hosp. Dist.</i> (1992) 2 Cal.4th 962	6
<i>Mercer v. Department of Motor Vehicles</i> (1991) 53 Cal.3d 753	7, 9
<i>Merrill v. Navegar, Inc.</i> (2001) 26 Cal.4th 465	11
<i>Soule v. General Motors Corp.</i> (1994) 8 Cal.4th 548	11, 12
<i>Webb v. Special Elec. Co., Inc.</i> (2016) 63 Cal.4th 167	11

STATUTES

Cal. Code Regs. Title 13 § 227.02(f)	9
Code Civ. Proc. § 430.10(e)	6
§ 430.10(f)	10
Comm. Code § 2313(1)(a)	12
§ 2313(1)(b)	12
Veh. Code § 305	7, 9
§ 12800(c)	9
§ 12800.5(a)(1)	9
§ 22350	5, 10
§ 38750	8, 9
§ 38750(a)(1)	8
§ 38750(a)(2)	8
§ 38750(a)(4)	8

TABLE OF AUTHORITIES
(continued)

Page(s)

§ 38750(b)	9
§ 38750(b)(2)	9

RULES AND REGULATIONS

49 C.F.R. § 571.3	9
----------------------------	---

OTHER AUTHORITIES

CACI 1220-1222	11
CACI 1230	12
CALCRIM 2241	7

1 **MEMORANDUM OF POINTS AND AUTHORITIES**

2 **I. INTRODUCTION**

3 This is a product-liability case arising from a rear-end automobile crash. Plaintiffs allege
4 that a Tesla Model 3 driven by defendant Romeo Yalung struck plaintiffs' SUV from behind.
5 The collision fatally injured their son and also injured plaintiff Benjamin Maldonado Escudero.

6 To the extent plaintiffs' complaint alleges traditional product-liability and wrongful-death
7 claims, we will defend against their claims on the facts. Thus we do not demur to the first,
8 second, fifth or sixth causes of action.

9 But besides traditional product liability claims, Plaintiffs' complaint adds two claims
10 resting on a baseless legal conclusion that defendant Tesla, Inc. ("Tesla") was *driving* the vehicle.
11 Plaintiffs allege Tesla did so negligently. But the complaint does not allege any *facts* showing
12 that Tesla (the defendant company, not the vehicle) was driving. As a matter of California law,
13 you are not driving a vehicle unless you have actual physical control of the vehicle or
14 intentionally cause it to move. The complaint does not allege any such facts as to the company,
15 nor could it. No Tesla employee was even allegedly in the vehicle. The complaint alleges no
16 factual basis for its legal conclusion that Tesla was driving the vehicle.

17 Plaintiffs try to avoid that problem by claiming the vehicle was "self-driving." Though
18 we do not demur on this basis, for clarity we note that plaintiffs are wrong; this car was not self-
19 driving. More important for demurrer purposes, taking the allegation as true doesn't help them.
20 The Legislature and Department of Motor Vehicles have specifically addressed self-driving
21 vehicles and confirmed that the "operator" and "driver" are the *human* behind the wheel.
22 Moreover, plaintiffs are suing the company, not the vehicle. Alleging the *vehicle* was not a good
23 driver does not make the *company* into the driver. The substance of their claims sounds in
24 product liability. They allege the vehicle was not good enough at perceiving and reacting to
25 traffic and obstacles, because it was supposedly not designed or manufactured properly. They
26 also claim the company did not adequately warn about the vehicle's limitations. Those are classic
27 product-liability claims. Plaintiffs already assert product-liability claims in the first and second
28 causes of action, to which we do not demur. But the complaint does not allege any facts

1 supporting the conclusion that Tesla, the company, was driving the vehicle. The third and fourth
2 causes of action, which rest on that unsupported conclusion, do not state a cause of action. The
3 fourth cause of action is also uncertain because it vaguely alleges that Tesla “otherwise” breached
4 duties without saying what duty or how it was violated, and that Tesla violated “multiple
5 sections” of the Vehicle Code without identifying the sections or how Tesla supposedly violated
6 them.

7 **II. FACTS**

8 In all that follows, we merely describe the complaint’s allegations. We do not admit the
9 allegations are true. Where the complaint alleges words in all-caps, we change them to normal
10 capitalization for readability.

11 **A. The Accident.**

12 In August 2019, plaintiff Benjamin Maldonado Escudero was driving his vehicle on I-880
13 with his son Jovani Maldonado Garcia in the front passenger seat. (Complaint ¶ 12.) Maldonado
14 Escudero changed lanes into the path of a Tesla Model 3. (Complaint ¶ 12.) Defendant Romeo
15 Lagman Yalung was “operating” the Model 3 at the time of the collision and was the vehicle’s
16 “operator.” (Complaint ¶¶ 3, 4, 18.) In other words, the Model 3 was being operated by a human
17 being.

18 The Model 3 rear-ended plaintiffs’ vehicle, allegedly causing it to roll over. (Complaint ¶
19 12.) As a result Jovani, who reportedly was not belted, was ejected and died from his injuries.
20 (Complaint ¶ 12.) Mr. Maldonado Escudero was also injured. (Complaint ¶ 12.)

21 Plaintiffs allege that before impact, Yalung had the Model 3 in “auto pilot mode.”
22 (Complaint ¶ 13.) They claim the “subject vehicle [*i.e.* the Model 3] was driving itself.”
23 (Complaint ¶ 13.) The Model 3 was allegedly traveling faster than the speed limit and faster than
24 surrounding vehicles. (Complaint ¶ 13.) When Yalung noticed Maldonado Escudero merging
25 into his lane, Yalung tried to take control of the Model 3 and brake, but he could not avoid the
26 collision. (Complaint ¶ 13.) The Model 3 rear-ended plaintiffs’ vehicle at freeway speed and at a
27 speed allegedly unsafe for the conditions. (Complaint ¶ 13.)

28 ///

1 **B. Allegations About Tesla (The Company) And The Model 3 (The Product)**

2 Plaintiffs use three lines' worth of verbs and repetitive synonyms to describe Tesla's role.
3 They boil down to: Tesla designed, manufactured, marketed, sold and warranted the Model 3.
4 (Complaint ¶ 14.)

5 Plaintiffs' factual allegations involving defendant Tesla are about Tesla's design,
6 manufacture, and description of the product, the product itself, and consumers' expectations of
7 the product.

8 Thus, plaintiffs claim that Tesla designed, manufactured, marketed and advertised the
9 vehicle as self-driving or auto-pilot. (Complaint ¶ 15.) Those are allegations about design,
10 manufacture and marketing of the product.

11 Next, they allege that in this mode, the vehicle's human "operator transfers complete
12 control to the vehicle and the vehicle's sensory and control systems drive the vehicle without
13 human input." (Complaint ¶ 15.) Plaintiffs contend that the Auto-pilot mode does not have
14 reasonable parameters or limitations. (*Ibid.*) "Drivers" – humans – "are allowed to use the self-
15 driving mode in any traffic and conditions and at speeds in excess of the speed limit."
16 (Complaint ¶ 15.) Those are allegations about design of the product (they are also factually
17 wrong, but that is not a basis for this demurrer).

18 Plaintiffs next allege that Tesla says in marketing that what plaintiffs call the "self-driving
19 or auto-pilot mode" is safe and as good as or better than a human driver at detecting hazards,
20 changing conditions and traffic, and Tesla "promote[s] the functionality and safety of the self-
21 driving mode." (Complaint ¶¶ 16, 20.) Those are allegations about marketing and descriptions of
22 the product.

23 Continuing, plaintiffs say "[d]rivers" and consumers are informed, and expect, that the
24 vehicle will drive safely in what plaintiffs call self-driving mode, and will detect, avoid and adapt
25 to hazards and changing traffic conditions. (Complaint ¶ 16.) Those are allegations about
26 marketing and consumer expectations about the product.

27 Plaintiffs similarly allege the vehicle "did not perform as Defendants claimed the subject
28 vehicle would perform and as an ordinary consumer expects the vehicle to perform." (Complaint

1 ¶ 18.) They say the “vehicle was driving” in self-driving mode, faster than the speed limit and
2 faster than was safe for the conditions, and did not timely perceive, sense or react to changing
3 traffic conditions. (Complaint ¶ 18.) They continue that the “vehicle” did not and could not
4 perceive, react and avoid commonly occurring roadway and traffic conditions such as slowing
5 and merging traffic. (Complaint ¶ 18.) The “vehicle did not self-brake or otherwise take an
6 evasive action to prevent the collision,” they allege. (Complaint ¶ 18.) Those are allegations
7 about the product’s performance.

8 Plaintiffs continue that the “vehicle and similar vehicles ... are defective and unsafe”
9 because the vehicle provides the “operator” with a false sense of security and “drivers are less
10 attentive to roadway conditions and hazards, less focused on driving, and ... have a diminished
11 capacity to avoid collisions.” (Complaint ¶ 19.) They say “Ordinary consumers and users do not
12 appreciate and are not properly informed of the potential risks, dangers and limitations.”
13 (Complaint ¶ 19.) Those are explicitly complaints about an asserted product defect, consumer
14 expectations and warnings.

15 Then plaintiffs turn to what they say Tesla (the company) knew and should have done.
16 They claim that Tesla “knew and [was] aware of the manufacturing and design defects” and
17 “knew or should have known of the dangerous and defective nature of their self-driving
18 technology.” (Complaint ¶ 20.) They say Tesla “should have put in place features to limit the
19 use and/or protect their consumers against these dangers.” (Complaint ¶ 20.) But, they say, Tesla
20 “failed to give warnings to [Yalung] and/or other purchasers and users of the subject vehicle of
21 said dangers, defects and limitations ... and failed to properly inform their consumers and others
22 of the limitations of the technology.” (Complaint ¶ 20.) Those are complaints about Tesla’s state
23 of mind, and conduct, in manufacturing, designing, marketing and warning about the vehicle.

24 In short, the complaint’s allegations of fact about Tesla are all about the design and
25 manufacture of the product; marketing and warning about the product; Tesla’s state of mind in
26 designing, manufacturing, marketing and warning about the product; consumer expectations
27 about the product’s performance; and the product’s asserted failure to live up to those
28 expectations. Nowhere is there any fact indicating that any Tesla employee was driving the

1 vehicle.

2 Still, plaintiffs allege, "In essence, Tesla is driving the vehicle." (Complaint ¶ 15.) That is
3 a deduction from the other facts alleged, not a fact in its own right. It is also a legal conclusion.
4 The word "drive" is defined in California law, and the facts alleged in the complaint do not meet
5 that definition. We address this in Part III.A below.

6 **C. The Causes Of Action At Issue On This Demurrer.**

7 At issue on this demurrer are the complaint's third and fourth causes of action.
8 As relevant to Tesla, both depend on the legal conclusion that Tesla (the company) drove the
9 vehicle.

10 The third cause of action is motor vehicle negligence. It is against all defendants,
11 including the driver Romeo Yalung, co-defendant Vilma Yalung, Tesla, and Doe defendants. It
12 alleges that "Defendants, and each of them, so negligently, carelessly and/or recklessly owned,
13 operated, used, drove, maintained, loaned, and/or entrusted the subject vehicle at the
14 aforementioned times and places." (Complaint ¶ 34.) Paragraph 35 alleges that "Defendant's
15 actions and inactions in operating the subject vehicle" caused the collision and plaintiffs' harm.
16 (Complaint ¶ 35) (emphasis added).

17 As to Tesla, the meat of the third cause of action is that Tesla "drove" the vehicle. The
18 other allegations (used, operated, owned, maintained, loaned and entrusted) do not appear to
19 involve Tesla. The complaint alleges that Romeo Yalung "operated" the vehicle and was its
20 "operator." (Complaint ¶¶ 3, 4, 18.) It alleges that Romeo and Vilma Yalung owned the vehicle.
21 (Complaint ¶¶ 4, 5.) There is no factual allegation that Tesla used, operated, owned, maintained,
22 loaned or entrusted the vehicle.

23 The fourth cause of action is also based on negligent driving and runs against all
24 defendants. It alleges that defendants had a duty to use reasonable care toward plaintiffs and to
25 "drive the subject vehicle safely and according to the vehicle code." (Complaint ¶37.) It
26 continues that the "failure to use reasonable care to avoid injury to Plaintiff is negligence" and
27 that "Defendants ... are negligent per se for violating multiple sections of the California Vehicle
28 Code, including but not limited to section 22350." (Complaint ¶¶ 38, 39.) Section 22350 is the

1 Basic Speed Law, which says that a person shall not “drive” faster than is safe for the conditions.

2 The third and fourth causes of action are *not* cast as product liability claims. Plaintiffs
3 allege a separate product-liability negligence cause of action. (Complaint ¶¶ 27-32.) Again, Tesla
4 is not demurring to it. That cause of action alleges that defendants “were negligent in the design,
5 manufacturing, installation, promotion, instruction, and warnings related to the subject vehicle
6” (Second Cause of Action, ¶ 31.) Thus, regardless of this demurrer, plaintiffs will have a
7 product-liability negligence claim encompassing any alleged negligence in designing,
8 manufacturing, advertising or warning about the vehicle. Plaintiffs also allege a strict product
9 liability defect cause of action against Tesla embracing alleged design, manufacturing and
10 warning defects. (Complaint ¶¶ 22-26.)

11 The allegations contested by this Demurrer are those that attribute “driver” status to the
12 vehicle as opposed to the human, and then seek relief against the Company as though it were the
13 driver or that it has responsibility for the vehicle’s operation independent and in excess of its
14 potential responsibility under product liability negligence and strict liability theories.

15 **III. ARGUMENT**

16 A party may object by demurrer that, among other things, “[t]he pleading does not state
17 facts sufficient to constitute a cause of action.” (Code Civ. Proc. § 430.10(e).) On demurrer, the
18 Court gives the complaint a reasonable interpretation and treats the demurrer as admitting all
19 material facts properly pleaded. (*Aubry v. Tri-City Hosp. Dist.* (1992) 2 Cal.4th 962, 966-967.)
20 “The court does not, however, assume the truth of contentions, deductions or conclusions of law.”
21 (*Ibid.*)

22 Here, the material facts properly pleaded do not support the claim that Tesla (the
23 company) was driving or operating the vehicle. The Court does not assume the truth of the
24 deduction and legal conclusion that Tesla was driving or operating it. Therefore, plaintiffs’
25 negligent-driving causes of action do not state facts sufficient to state a cause of action.

26 ///

27 ///

28 ///

1 **A. The Third Cause Of Action Does Not State Facts Sufficient To Constitute A**
2 **Cause Of Action Against Tesla.**

3 Under California law, to “drive” means to intentionally cause a vehicle to move, and to be
4 a “driver” one must drive or exercise actual physical control over the vehicle. The Legislature
5 has specifically addressed self-driving vehicles and confirmed that both the “operator” and the
6 “driver” are the human being in the driver’s seat. The complaint does not allege facts showing
7 that Tesla (the company) “operated” or “drove” the vehicle.

8 Specifically, in *Mercer v. Department of Motor Vehicles* (1991) 53 Cal.3d 753,
9 defendant’s driver’s license was revoked after he refused to submit to chemical testing following
10 his arrest for driving under the influence of alcohol. Defendant was found slumped over the
11 steering wheel of the vehicle, which was parked. The Supreme Court reversed the license
12 revocation because, as a matter of law, defendant had not been driving when the officer saw him
13 because he did not cause volitional movement of the vehicle. Citing several dictionary
14 definitions, the Court explained that “[i]n everyday usage the phrase, ‘to drive a vehicle,’ is
15 understood as requiring evidence of volitional movement of a vehicle.” (*Mercer*, 53 Cal.3d at
16 763-765.) “We believe these definitions are consistent with the usual and ordinary understanding
17 of that term” (*Ibid.*) The Court held that “drive” requires volitional movement of a vehicle.
18 53 Cal.3d at 766-768.

19 Similarly, Vehicle Code section 305 defines “driver” as “a person who drives or is in
20 actual physical control of a vehicle.” (Cal. Veh. Code § 305; *Adler v. Department of Motor*
21 *Vehicles* (1991) 228 Cal.App.3d 252, 258 [person was driving because she exercised actual
22 physical control].) The standard jury instruction on driving states that “A person *drives* a vehicle
23 when he or she intentionally causes it to move by exercising actual physical control over it. The
24 person must cause the vehicle to move” (CALCRIM 2241 [citing § 305 and *Mercer*].)

25 The complaint does not allege facts even arguably meeting these definitions as to Tesla.
26 The operator was admittedly Yalung. (Complaint ¶¶ 3, 4, 18.) No Tesla employee is alleged to
27 have been in the vehicle. No Tesla employee is alleged to have been in actual physical control
28 over the vehicle. No Tesla employee is alleged to have exercised any volition over whether the

1 vehicle accelerated, slowed, changed lanes, did anything else in response to plaintiffs' vehicle
2 merging in front of it, or for that matter whether it stayed at home in the Yalungs' parking space.

3 What Tesla (the company) *is* alleged to have done is to design, manufacture, sell,
4 advertise and warrant the vehicle. (Part II.B above.) None of that is driving, operating, or using
5 the vehicle. The claims against Tesla are in substance product liability claims, not driver
6 negligence claims.

7 Plaintiffs get no further alleging that the vehicle was driving itself. Even if that were true
8 (and it's not), it would not make defendant Tesla, Inc. the driver. The defendant is the *company*;
9 the vehicle alleged to have been driving is the *product*. This allegation does not state facts
10 showing that the *defendant* (Tesla, Inc.) was driving. In essence, plaintiffs seek to sue the
11 physical car itself for negligent driving, but can't, so they make these claims against the company.
12 But there is no basis for such a claim because no facts support a conclusion that the company was
13 driving the vehicle. And, to the extent the company is to blame for this crash happening, which it
14 contests, its liability would arise under product liability.

15 The Legislature has also confirmed that when a vehicle drives itself, the human being
16 remains both the "operator" and the "driver." Vehicle Code section 38750 addresses vehicles that
17 have the true ability to drive themselves: those equipped with "technology that has the capability
18 to drive a vehicle without the active physical control or monitoring by a human operator." (Cal.
19 Veh. Code § 38750(a)(1).) A vehicle equipped with such technology is called an "autonomous
20 vehicle." (§ 38750(a)(2)(A).) Section 38750 confirms that the operator of such a vehicle is the
21 human in the driver's seat: "An 'operator' of an autonomous vehicle is the person who is seated
22 in the driver's seat, or, if there is no person in the driver's seat, causes the autonomous technology
23 to engage." (§ 38750(a)(4).) As plaintiffs admit, that is Yalung. (Complaint ¶¶ 3 [vehicle was
24 "operated by" Yalung], 4 [Yalung was "operating" vehicle], 13 ["Yalung had the subject vehicle
25 in 'auto pilot mode'"].)

26 Section 38750 and regulations under it similarly make clear that the "driver" is the human
27 operating the vehicle, not the vehicle's manufacturer: "The *driver* shall be seated in the driver's
28 seat, monitoring the safe operation of the autonomous vehicle, and capable of taking over

1 immediate manual control of the autonomous vehicle in the event of an autonomous technology
2 failure or other emergency.” (§ 38750(b)(2)) (emphasis added). Human beings, not corporations,
3 sit in seats. Similarly, the “driver” must “possess[] the proper class of license” for the type of
4 vehicle being operated. (§ 38750(b).) Human beings, not corporations, get drivers’ licenses. A
5 corporation could not even fulfill the legal requirements to obtain a driver’s license. The license
6 application must be accompanied by the applicant’s thumbprint, and the license itself must have a
7 fullface photo of the licensee. (See Vehicle Code §§ 12800.5(a)(1), 12800(c).) The DMV,
8 charged with making autonomous-vehicle regulations, recognizes that the driver is a natural
9 person. “‘Driver’ means the *natural person* who is operating an autonomous vehicle when it is
10 not operating in the autonomous mode.” (Cal. Code Regs. tit. 13 § 227.02(f)) (emphasis added).
11 Tesla, Inc. is not a natural person. It is a corporation. (Complaint ¶ 3.) Federal auto-safety
12 regulations, too, provide that the driver is the person in the driver’s seat. “Driver means the
13 occupant of a motor vehicle seated immediately behind the steering control system.” (49 C.F.R. §
14 571.3.) The complaint does not allege that Tesla, Inc. or any employee was an occupant of the
15 vehicle.

16 Whether one uses the traditional definition of “drive” under *Mercer*, the general Vehicle
17 Code definition of “driver” under section 305, the specific definitions of “operator” and “driver”
18 for autonomous vehicles under section 38750, or the definition of “driver” under federal auto-
19 safety law, the complaint alleges no facts indicating that defendant Tesla, Inc. was driving or
20 operating the vehicle on I-880 the day of the accident. Necessarily it was not doing so
21 negligently.

22 **B. The Fourth Cause of Action Does Not State Facts Sufficient To Constitute A**
23 **Cause of Action Against Tesla, And Is Also Uncertain.**

24 The fourth cause of action alleges that defendants had “a duty to use reasonable care
25 towards Plaintiff and their *use* of the roadway and to *drive* the subject vehicle safely and
26 according to the Vehicle Code,” and that defendants breached these duties “and *otherwise*
27 breached their duty of reasonable care.” (Complaint ¶ 37) (emphasis added). It also alleges that
28 defendants were negligent per se for violating “*multiple sections* of the California Vehicle Code,

1 including *but not limited to* section 22350.” (Complaint ¶ 39) (emphasis added).

2 As detailed below, to the extent this claim alleges that Tesla was driving the vehicle, it
3 does not state a cause of action. The other allegations -- that Tesla “otherwise” breached a duty
4 of care (without saying what duty or how Tesla violated it) and violated “multiple” sections of the
5 Vehicle Code (without saying which sections or how Tesla violated them) – are uncertain.

6 **1. The Fourth Cause of Action Does Not State Facts Sufficient To**
7 **Constitute A Cause of Action Against Tesla.**

8 The Fourth Cause of Action does not state facts sufficient to constitute a cause of action
9 for much the same reason as the Third Cause of Action. It alleges that Tesla breached a duty to
10 “drive” the vehicle safely and “use the roadway” safely, but for the reasons already stated, the
11 complaint does not allege any facts showing that Tesla drove the vehicle. The complaint
12 similarly does not allege any facts showing that Tesla “used the roadway.”

13 Plaintiffs’ negligence per se claim does not state a cause of action for the same reason.
14 The only statute plaintiffs identify is Vehicle Code § 22350, which is the Basic Speed Law. It
15 provides that “No person shall *drive* a vehicle” faster than reasonable or at a speed that endangers
16 the safety of persons or property. Cal. Veh. Code § 22350 (emphasis added). As discussed
17 above, the complaint does not allege any facts showing that Tesla (the company) was “driving”
18 the vehicle. Therefore, it does not allege facts showing that Tesla violated section 22350.

19 **2. The Fourth Cause of Action Is Uncertain.**

20 The complaint is uncertain to the extent the Fourth Cause of Action alleges that Tesla
21 “otherwise” breached unidentified duties or violated “multiple” unidentified sections of the
22 Vehicle Code. For purposes of demurrer, “‘uncertain’ includes ambiguous and unintelligible.”
23 (Cal. Code Civ. Proc. § 430.10(f).) A demurrer for uncertainty will be sustained where the
24 defendant cannot reasonably respond. (*A.J. Fistes Corp. v. GDL Best Contractors, Inc.* (2019) 38
25 Cal.App.5th 677, 695.) That is this case. Tesla cannot tell from the complaint what it is alleged
26 to have “otherwise” done wrong – what duty was allegedly breached or what actions allegedly
27 breached it. Similarly, Tesla cannot tell from the complaint what “multiple” sections of the
28 Vehicle Code it allegedly violated. There is no way to respond to or refute vague allegations that

1 Tesla in some unknown way violated some unknown duty.

2 **C. Sustaining The Demurrer Will Not Leave Plaintiffs Without A Claim.**

3 Removing plaintiffs' baseless negligent-driving from the complaint will not leave
4 plaintiffs without a claim against Tesla, if they have one under the governing law. Plaintiffs'
5 complaint alleges product-liability claims in both strict liability and negligence. (*See* Complaint
6 ¶¶ 22-32.) Tesla is not demurring to those products-liability causes of action, and the product-
7 liability claims encompass the things plaintiffs actually claim Tesla did wrong. Sustaining the
8 demurrer on the third and fourth causes of action does not undercut or otherwise impede
9 plaintiffs' ability to prosecute these product causes of action.

10 "[A] plaintiff may seek recovery in a 'products liability case' either 'on the theory of strict
11 liability in tort or on the theory of negligence.'" (*Merrill v. Navegar, Inc.* (2001) 26 Cal.4th 465,
12 478 [citation omitted].) "[U]nder either a negligence or a strict liability theory of products
13 liability, to recover from a manufacturer, a plaintiff must prove that a defect caused injury....
14 Under a negligence theory, a plaintiff must also prove 'an additional element, namely, that the
15 defect in the product was due to the negligence of the defendant.'" (*Id.* at 479.) The standard
16 jury instructions include products-liability claims sounding in negligence. (*See* CACI 1220-1222
17 [negligence claims based on design, manufacture, warning and other activities].)

18 Plaintiffs' claims against Tesla here are in substance products-liability claims. As
19 summarized above, plaintiffs claim:

- 20 • That the company did not properly design the product. That is a product-liability claim. (*See*
21 *generally Soule v. General Motors Corp.* (1994) 8 Cal.4th 548, 560-572 [describing tests for
22 design defect in strict liability]; *Merrill, supra*, 26 Cal.4th at 479 [describing test for design
23 defect in negligence])
- 24 • That the company did not properly warn users about the product. That is a product-liability
25 claim. (*See, e.g., Webb v. Special Elec. Co., Inc.* (2016) 63 Cal.4th 167, 180-181 ["The law
26 has long recognized three types of product defects: manufacturing defects, design defects and
27 'warning defects.' ... California law recognizes separate failure to warn claims under both
28 strict liability and negligence theories."].)

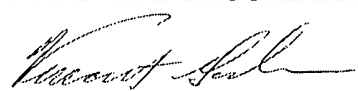
- 1 • That the product did not perform as safely as an ordinary consumer would have expected.
2 That is a product-liability design-defect claim. (*See Soule*, 8 Cal.4th at 562-570 [describing
3 the consumer-expectation test for design defect].)
- 4 • That the product did not live up to the company's representations about it. That is a product
5 liability claim sounding in express warranty. "Any affirmation of fact or promise made by the
6 seller to the buyer which relates to the goods and becomes part of the basis of the bargain
7 creates an express warranty that the goods shall conform to the affirmation or promise." (Cal.
8 Com. Code § 2313(1)(a).) Similarly, "Any description of the goods which is made part of the
9 basis of the bargain creates an express warranty that the goods shall conform to the
10 description." (Cal. Com. Code § 2313(1)(b); *see* CACI 1230 [pattern jury instruction for
11 product-liability claim based on express warranty]) Plaintiffs' complaint does not allege an
12 express-warranty claim, and plaintiffs probably cannot do so when they did not purchase the
13 vehicle or apparently even hear the representations they allege. But that is just a substantive
14 reason why they cannot base a claim on representations about the product. It does not mean
15 Tesla was driving the vehicle.

16 **IV. CONCLUSION**

17 Plaintiffs' claims that Tesla was driving the vehicle are baseless. The complaint does not
18 allege any facts that would bring Tesla within any definition of "driver," "driving" or "operator"
19 under California law. The Legislature has made clear that even when a vehicle is autonomous,
20 the driver is the human being. In other words, the driver, Mr. Yalung, was responsible for the
21 safe operation of the vehicle. And plaintiffs do not need this negligent-driving theory, because
22 the facts they allege against Tesla fit within traditional product-liability claims. Their complaint
23 already makes such claims: the first and second causes of action. The Court should sustain the
24 demurrer to the third and fourth causes of action.

25 Dated: April 30, 2021

BOWMAN AND BROOKE LLP

26
27 By 

Vincent Galvin
Attorneys for Defendant
TESLA, INC.

1 Benjamin Maldonado Escudero, et al. v. Tesla, Inc., et al.
2 Case No. RG21090128

3
4 PROOF OF SERVICE

5 I am over 18 years of age, not a party to this action and employed in San Jose, California at
6 1741 Technology Drive, Suite 200, San Jose, California 95110-1355.

7 On the date indicated below, I served the foregoing documents described as: **NOTICE**
8 **OF DEMURRER OF DEFENDANT TESLA, INC. TO COMPLAINT OF BENJAMIN**
9 **MALDONADO ESCUDERO AND ADRIANA GARCIA MALDONADO; DEMURRER;**
10 **MEMORANDUM OF POINTS AND AUTHORITIES** on all interested parties, or through
11 their attorneys of record, in the manner noted, addressed as follows:

12 **Attorneys for Plaintiffs**

13 Benjamin D. Swanson, Esq.
14 Gregory C. Schaffer, Esq.
15 The Swanson Law Group
16 31824 Village Center Road, G-Unit
17 Westlake Village, CA 91361
18 Tel: (818) 852-7300
19 Fax: (818) 852-7298
20 Email: ben@theswansonlawgroup.com
21 greg@theswansonlawgroup.com

22 X VIA FIRST CLASS MAIL. I caused such envelope to be deposited in the mail at San Jose,
23 California, in a sealed envelope with postage fully prepaid thereof. I am readily familiar with the
24 firms business practice for collection and processing of correspondence for mailing with the United
25 States Postal Service. The mail is deposited with the U.S. Postal Service on that same day in the
26 ordinary course of business. I am aware that on motion of the party served, service is presumed
27 invalid if the postal cancellation date or postage meter date is more than one day after the date of
28 deposit for mailing in affidavit.

 VIA OVERNIGHT DELIVERY SERVICE. The documents were enveloped, properly
labeled, and caused to be deposited into an overnight delivery (Federal Express, United Parcel
Service, etc.) receptacle or delivered to an authorized courier or driver authorized by the express
service carrier to receive documents, in an envelope or a package designated by the express service
carrier with delivery fees paid or provided for, addressed to the person on whom it is to be served,
at the office address as last given by that person on any document filed in the case and served on
that person; otherwise, at that person's place of residence.

X BY ELECTRONIC SERVICE. The document was served electronically and the
transmission was reported as complete and without error. The document was served on the above
parties in this action by causing a true copy of said document to be transmitted by email pursuant to
Emergency Rule 12 of Appendix I of the California Rules of Court.

___ VIA FACSIMILE TRANSMISSION. The document was served on the above party in this action by causing a true copy of said document to be transmitted by facsimile to the number listed adjacent to the name on this Proof of Service. The transmission was reported as complete and without error.

____ VIA PERSONAL SERVICE. I caused such envelope(s) to be delivered by hand this date to the offices of the addressee(s).

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct, and that this declaration was executed on April 30, 2021, at San Jose, California.

Wally Robles

Letty Robles